

# Get yourself heard, the legal way

Everyday, we get to hear a lot about consumer rights. Not only it makes us aware of our rights in a certain way but also tempts us to take initiative against erring service providers. Well it's a good trait if you feel positive about your rights and if you value your hard earned money. But isn't it true that many of us just end up only thinking about it as we do not have any idea how to go about the consumer complaints.

Here, we would like to express what an ideal notice should contain. A notice should always go to the service provider to intimate them about the nature of the complaint. There is no legal requirement of sending notices. However, at times, good sense prevails over the company and problems are sorted out at the stage of notice itself.

## A notice to get noticed?

A notice is sent by a consumer to resolve several problems related to deficiency in services. This not only put them on a caution but also push them to have look what they deliver and serve. Before we jump over the content of the notice, the first and foremost rule that a consumer must keep in mind is that the notice must be sent by registered post or Speed Post with acknowledgement only. This way the consumer will have a record of all the communication with the company. If you have sound record of your communications, the company can never take a stand that they were not informed about the deficiency at any stage. However, besides these modes, one can additionally send the notice by other modes such as courier and email, or by hand.

## Do your homework first

Before going ahead with drafting your notice, get all relevant details of products and services availed such as cash memo

number, date, place, and if there was any special offer or scheme under which the product was sold or services were availed of. Second, check the guarantee or warranty status and give information about the warranty or guarantee promised at the time of purchase. It is advisable not to go by what was promised to you verbally and check the conditions that are generally contained in the accompanying booklet or brochure. In a precise manner mention and include all the details of deficiencies in product or services availed of. Catalogue all the problems faced due to deficiencies. If you have tried to resolve the problems by approaching the company by calling the customer care executive, mention that along with the complaint reference number, if any. You can also give details of all efforts to inform about grievances to which the service provider or company has not responded.

## Patience is key!

Do not be under the impression that notice is magic stick and things would change overnight, therefore, give a reasonable time limit preferably of at least 15 days to reconcile a complaint. Consumer can ask for refund of full amount with suitable interest, or replacement of the product along with suitable compensation. The notice should end with a statement that if the things are not sorted out, then you (the consumer) will be filing a complaint with the consumer court. Make a clear stipulation in the notice that the consumer complaint will be at their cost and expenses, and you will be seeking compensation for the mental distress caused due to deficiency in services.

The notice should generally be sent on registered office of the company. In internet age it is not tough to find out the composition of a company's

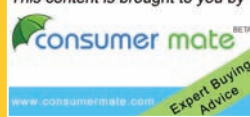
registered name and address and details of the higher officials. The name and addresses of the person to whom notice is being addressed should be complete and along with their designation. You must give your full name, complete contact details including your mobile no.etc so that the company can contact you.

Calculation of the damages is another issue which confuses the consumer most of the time. Well experts suggest that one should not hesitate in demanding damages and at the same time one should be rational what he is demanding. If you have reason to ask for damages then you have every reason to demand it.

Sending notice is not panacea, one has to write everything keeping in mind that things can to consumer courts and you might be required to explain whatever you write. This does not mean that you have to be an expert but what is required is right sequence of the events. Try to avoid unnecessary details which have no bearing on your case.

We've enclosed few complaints from the whole lot we received this month, so that you may find real life examples here. Write to us if you need help and guidance. **d**

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